

SUPREME COURT OF PAKISTAN
(Appellate Jurisdiction)

PRESENT:

Mr. Justice Shahid Waheed
Mr. Justice Naeem Akhtar Afghan
Mr. Justice Muhammad Shafi Siddiqui

CPLA Nos.642-L, 1606 & 2172 of 2025

Against judgments dated 17.01.2025 of the Punjab Subordinate Judiciary Service Tribunal, Lahore, passed in Service Appeals No.26 of 2013 and 19 of 2010.

Lahore High Court, Lahore, through its
Registrar (*in CPLA#642-L/2025*)

Muhammad Afzal Zahid
(*in CPLA#1606 & 2172/2025*)

...Petitioner(s)

VERSUS

Muhammad Afzal Zahid
(*in CPLA#642-L/2025*)

Lahore High Court, Lahore, through its
Registrar (*in CPLA#1606 & 2172/2025*)

...Respondent(s)

For the Petitioner(s) : Mr. Zubda Tul Hassan, ASC
(*in CPLA#642-L/2025*)
Ch. Muhammad Amin Javed, ASC
Sh. Mehmood Ahmed, AOR
(*in CPLA#1606 & 2172/2025*)

For the Respondent(s) : Ch. Muhammad Amin Javed, ASC
Sh. Mehmood Ahmed, AOR
(*in CPLA#642-L/2025*)
Nemo (*in CPLA#1606 & 2172/2025*)

Date of Hearing : 13.05.2026

JUDGMENT

Shahid Waheed, J.- The present batch of cases concerns not merely the proof of a charge, but the preservation of the integrity of the judicial institution grounded in the principle that the robe of a judge is not stained only by proved corruption; it is equally darkened by sustained loss of credibility. As such, this Court, in these cases, is confronted with questions of whether a finding of “bad repute,” even in the absence of a proved charge of corruption, can sustain the penalty of removal from service, and

whether the Punjab Subordinate Judiciary Service Tribunal (the Tribunal) erred in altering that penalty to compulsory retirement.

2. We have before us three petitions, arising out of two service appeals brought by a judicial officer before the Tribunal. In one appeal, he challenged the penalty of removal from judicial service, while in the other, he assailed the adverse remarks recorded in his Performance Evaluation Report (PER). The Tribunal, in its consolidated judgment dated 17th of January, 2025, modified the penalty of removal to compulsory retirement and disposed of the second appeal, holding that it had become redundant. Neither party is satisfied with the judgment. The judicial officer has filed two leave petitions: the first is a petition (that is, CPLA No. 1606/2025) for acquittal of the charges and reinstatement to service. The second (viz., CPLA No. 2172/2025) seeks to expunge the adverse remarks in his PER. The third leave petition is filed by the High Court, CPLA No. 642/ 2025, seeking not only the restoration of the findings returned by the inquiry officer on all the charges, but also the revival of the penalty of removal from service. Since all three petitions are against a common judgment, they are fit to be decided together.

3. It is essential to understand the background of the questions requiring our consideration in these cases. We will briefly outline the context. The judicial officer, while serving as an Additional District & Sessions Judge at Mailsi in the District of Vehari, received adverse remarks in his PER. His departmental appeal against these remarks was rejected, prompting him to file Service Appeal No. 19 of 2010 before the Tribunal. During this period, several complaints were also lodged against him with the High Court. These complaints accused him of receiving illegal gratification to influence decisions in cases before him. Given the serious nature of these allegations, the Authority deemed it prudent to monitor his conduct through quarterly special reports from the District & Sessions Judge before taking any disciplinary action. The reports provided thereafter indicated that he lacked a good reputation within the judiciary. Consequently, departmental disciplinary proceedings were initiated against him on charges of

corruption, misconduct, and maintaining an unrighteous and incorrigible integrity. An inquiry officer investigated the allegations, examining all evidence and testimonies. The inquiry findings were adverse to the judicial officer, establishing that his conduct had gravely undermined the dignity and integrity of the judicial office. Based on the inquiry report, the competent authority imposed a major penalty: removal from service. The judicial officer challenged this disciplinary action by filing Service Appeal No. 26 of 2013. Both appeals were consolidated and jointly heard and decided by the Tribunal.

4. The Tribunal, on appeal, re-examined the entire record and found that the evidence did not support the allegation of receiving illegal gratification in exchange for a favourable decision. However, the findings regarding the tarnished reputation charge were upheld. Both parties have expressed dissatisfaction with the Tribunal's partial concurrence, feeling that it either overlooked or underplayed certain aspects. Without further ado, we affirm that the Tribunal has correctly concluded that there was insufficient proof of accepting illegal gratification. This prompts us to consider the position taken by the judicial officer, who argued that the allegation of his poor reputation was also unsubstantiated by the evidence. He claimed that the only document used to suggest misconduct—the report (Exh.PB) written by his District & Sessions Judge—was unjustly scrutinised during disciplinary proceedings and by the Tribunal, especially since it could not be relied upon because the District & Sessions Judge was known to bear animosity towards him. To support this, two specific instances were cited: first, that on two separate occasions, he abstained from voting in favour of his District & Sessions Judge during elections for the position of General Secretary and later for the Member seat on the Executive Committee of the Punjab Judicial Officers Association; second, that he was denied protocol during a surprise visit to Mailsi, where he served as Additional District & Sessions Judge. This argument does not persuade us, as he did not include these facts in his reply to the charge sheet. His response merely suggested that the report (Ex.PB) resulted from misunderstanding, misconception, or personal bias. He did not elaborate on the

specific incidents mentioned above in his reply. In our view, raising such a defence during the inquiry was simply an ill-fated attempt to improve his stance that, instead of eliciting a positive response, damaged his credibility. The inquiry officer was, therefore, justified in treating the defence as an afterthought advanced to undermine the credibility of the report (Ex.PB), which was intended to deflect attention from his guilt. The District & Sessions Judge, as his superior officer, was best placed to assess his performance, conduct, and integrity. It is common knowledge that evaluations made by a District & Sessions Judge are based on extensive observations and various undocumented materials that may help form an opinion, but are not part of the formal record. Such opinions, if not tainted with malice, can serve as a sheet anchor for initiating disciplinary action and determining the appropriate penalty.¹ In this case, though the judicial officer alleged malice against his District & Sessions Judge, he failed to substantiate it. The opinion of the District & Sessions Judge, therefore, could not be disregarded.² That apart, his service record is replete with such remarks that negatively affect his reputation, portraying him as unscrupulous and of questionable integrity, suggesting unrighteousness and an incorrigible character flaw. It is now well settled that this Court does not interfere on the ground that another view is possible on the material on record. If the inquiry has been fairly and properly conducted and the findings are based on evidence, the question of the adequacy or reliability of the evidence will not be a ground for the Tribunal, and even for this Court, to interfere with the findings in departmental inquiries. The Tribunal or this Court intervenes where findings of fact are based on no evidence or are clearly perverse. Insofar as the finding regarding the judicial officer's bad reputation is not an outcome of a flawed inquiry, we are not inclined to disturb it.

¹ Ch. Shabbir Hussain and others v. Registrar, Lahore High Court, Lahore and others (PLD 2004 SC 191)

² The Federation of Pakistan through the Secretary, Establishment Division, Government of Pakistan Rawalpindi v. Saeed Ahmad Khan and others in C.A.No.24 of 1973 & The Secretary, Department of Education, Government of Punjab v. M.R. Toosy, Ex-Principal, Government College, Sargodha and others in C.A.No.28 of 1973 (PLD 1974 SC 151)

5. Now we have reached the stage where we have to examine whether the judicial officer found to be of bad repute, though not proved guilty of a specific act of corruption, can be retained in service, and whether compulsory retirement is a legally sustainable substitute for removal in such circumstances. The Tribunal assumed that, once corruption was not specifically proved, the penalty of removal from service, considering the judicial officer's length of service, the nature of the misconduct, and the context surrounding it, was not proportionate to the guilt proved and, as such, necessarily required to be substituted with compulsory retirement. To reach this conclusion, the Tribunal cited in its judgment two precedents established by this Court³ and three from the Indian jurisdiction.⁴ The reasoning adopted by the Tribunal is, in our view, with all due deference, unsound and makes out a case for misplaced sympathy.

6. While modifying the penalty, the Tribunal looked to precedents that apply to civil servants. We think it was not appropriate to follow these because the position of a judge cannot be equated with that of a civil servant. The need to preserve a good reputation is essential for a civil servant, but even more so for a judge. For a civil servant, a minor lapse may attract censure, stoppage of increment, or even compulsory retirement if it affects efficiency. For a judge, integrity is binary because the confidence of the people in the judiciary is the cornerstone of an Islamic welfare State.⁵ As such, a code of chivalry is enforced, which requires some essential qualities in the judges.⁶ Legal knowledge and skill are, of course, their fundamental attributes. But this intellectual equipment alone is not sufficient for the proper discharge of their duties. They must also be endowed with the moral virtue of impartiality, which is, in fact, the very breath of their judicial life. It

³ Akhtar Ali v. Director, Federal Government, Educational Institution PGET DTA, Rawalpindi and others (2009 SCMR 1197) and Farhad Ali v. Director-General, Pakistan Post Office and others (2011 SCMR 608)

⁴ State of Orissa and others v. Ram Chandra Das (AIR 1996 SC 2436), Sukhdeo v. Commissioner Amravati Division, Amravati and another (1996 (5) SCC 103) and S. Ramachandra Raju v. State of Orissa (AIR 1995 SC 111)

⁵ Ch. Shabbir Hussain and others v. Registrar, Lahore High Court, Lahore and others (PLD 2004 SC 191)

⁶ Nino C. Monea, Federal Judicial Misconduct: The need for higher standards on lower courts (2025) 70 Villanova Law Review 725

is important to emphasise here that the judge is the point at which the abstraction of law becomes a lived reality. Parties come not to argue with statutes, but to hear from a human conscience clothed in judicial office. If that conscience is doubted, the law itself becomes suspect.⁷ Jurisprudentially, the judiciary derives its authority not from force but from legitimacy. Legitimacy rests on two pillars: competence and integrity. Competence can be tested in judgments. Integrity is tested in reputation. A judge may render sound law, and yet, if his name carries a stain in the public mind, the judgment will be received with suspicion. Ethically, the judicial office demands more than the absence of wrongdoing. It demands the presence of an unblemished character.⁸ The standard for a judge is not “not guilty” but “beyond reproach.” This is because the judge’s power is exercised without political accountability and often without immediate review. The only check is the confidence of the people. Therefore, retention of any judge becomes impossible once his reputation is found to be bad. The judicial institution demands not only integrity, but also the appearance of integrity.⁹

7. It will not go amiss if we highlight the significance of the reputation and integrity of a judge in light of Islamic principles. The core principle governing public office in Islam is that authority is a trust (amāna) to be exercised with justice. This originates from the Qur’ānic directive in verse 58 of Sura Al-Nisa, which states, “Indeed, Allah commands you to return trusts to their rightful owners; and when you judge between people, judge with fairness. What a noble commandment from Allah to you! Surely Allah is All-Hearing, All-Seeing.” The Qur’an further commands: “O you who have believed, be persistently standing firm in justice, witnesses for Allah, even if it be against yourselves” [Al-Nisa 4:135]. These verses indicate that justice is not a bureaucratic function; it is an act of ‘ibadah. The Prophet (PBUH) said: “Judges are of three types: one in Paradise and two in Hell. The one in Paradise is a man who knew the truth and judged accordingly; a man who judged among

⁷ Metropolitan Properties Ltd v. Lannon (1969) 1 QB 57, Clark v. Vanstone (2004) 81 ALD 21

⁸ Jeremy Bentham, “Draft for the Organisation of Judicial Establishment” in the Works of Jeremy Bentham (ed. Bowring, 1843) Vol. 41, P. 359

⁹ Shimon Shetreet and Sophie Turenne, Judges on Trial, the Independence and Accountability of the English Judicial, 2nd Edition (2013)

people with ignorance is in Hell; and a man who knew the truth but judged unjustly is in Hell.” [Abu Dawood, Tirmidhi]. This hadith implies that knowledge without righteousness is insufficient. Classical jurists Imam al-Mawardi in *Al-Ahkam al-Sultaniyyah* and Ibn Qudamah in *Al-Mughni* state that a Qadi who loses ‘adala’ (legal uprightness) through conduct that causes the public to doubt his integrity must be removed. The test is not whether a specific sin is proved, but whether the public perception of fairness is undermined. Furthermore, the *Adab al-Qāḍī* literature affirms that appointment to public office—and, by implication, its continuation—is governed by the principle of fitness (*ahliyya*).¹⁰ Islamic scholars Tanzil-ur-Rahman¹¹ and Mahmood Ahmad Ghazi¹² cite the Prophetic injunction in explicit terms: “He who confers a post on someone in preference to a better qualified person, betrays the trust placed in him by God, His Prophet, and the Muslim Community.” This hadith, from al-Bayhaqi’s *al-Sunan al-Kubrā*, applies not only to initial appointments but also to the ongoing exercise of the appointing authority’s duty. Keeping a corrupt or unfit official is therefore essentially equivalent to appointing one: both constitute a betrayal of the divine trust (*amāna*) associated with authority. Fyzee expands on this principle, noting that appointing a *qāḍī* “is an obligatory duty on the authority concerned.”¹³ This duty includes the concurrent obligation to ensure that only qualified individuals occupy office. The responsibility is not a one-off act of appointment; it endures throughout the official’s tenure.¹⁴

8. In light of the above discussion, a question that remains to be answered is what punishment was appropriate to be imposed on the judicial officer, whose reputation was found to be tarnished. Whether, upon proving the charge, he ought to have been removed from judicial service or sent on compulsory retirement. The principle to be applied is that the penalty must be

¹⁰ Charles Hamilton, *The Hedaya*, 2nd Edition, P. 334

¹¹ Tanzil-ur-Rehman (1966) “*Adab al-Qadi*”, *Islamic Studies*, 5(2), PP. 199-207

¹² Gazi, M.A. (1993) *Adab al-Qadi*, 2nd Edition, Islamabad: Islamic Research Institute.

¹³ Fyzee, A.A.A. (1964) “*The Adab al-Qadi in Islamic Law*”, *Islamic Culture*, 38, PP.405-415

¹⁴ *Al-Jehad Trust through Raeesul Mujahideen Habib-ul-Wahabb-ul-Khairi and others v. Federation of Pakistan and others* (PLD 1996 SC 324)

proportionate to the mischief. The mischief here is the loss of public confidence. The judicial officer in the present case, by compromising his impartiality, not only lost public confidence but also strangled his judicial career. The moment public confidence in the integrity of the judicial officer was fractured, the fracture ran through the entire structure of the rule of law, undermining the integrity of the judicial institution itself. His continuation in office had become incompatible with the interests of the institution. Given the context, and before applying the principle of proportionality, it is important to keep in mind the clear distinction between compulsory retirement and removal from service. The distinction is not merely semantic. Compulsory retirement may, in appropriate circumstances, be imposed where the aim is to weed out deadwood or where retention is no longer administratively feasible. It, in any case, cannot be imposed on a judge of poor reputation, as allowing him to retire with benefits would suggest that reputation is negotiable, which would defeat the very purpose of the penalty. As a result, removal from service becomes justified when the conduct affects the integrity of a judge and the institution's morality and damages public confidence. It appears that the Tribunal overlooked this distinction: that when an ill-reputed or corrupt judge is removed, the judicial institution begins to heal because a specific tumour has been excised. Under these circumstances, we believe that the punishment of removal from service as imposed by the Competent Authority of the High Court was proportionate to the guilt established. The Tribunal thus erred in law by modifying the penalty of removal from service.¹⁵

9. In the end, we need to address the judicial officer's request regarding the expunction of adverse remarks recorded in his PER. We observe that the Tribunal dismissed his service appeal in this matter, noting that it had become redundant since he was not ordered to be reinstated to service. It appears that the judicial officer was initially reluctant to challenge the order in this appeal, but later opted to contest it before this Court. During this process,

¹⁵ Federation of Pakistan through the Secretary, Ministry of Law and Justice, Islamabad and others v. Supreme Judicial Council through Secretary, Supreme Court Building, Islamabad and others (PLD 2024 SC 698 at 721)

the time to file a leave petition (CPLA No. 2172/2025) had expired, and it is reported as being barred by 48 days. Although an application for condonation of delay has been filed, it lacks the necessary material particulars. Despite this omission, we also see no need to address the issues in this petition, for the same reasons stated by the Tribunal when dismissing his Service Appeal No. 19 of 2013. Therefore, CPLA No.2172/2025 deserves to be dismissed.

10. We, therefore, convert CPLA No. 642/2025 into an appeal and partly allow it. The judgment of the Tribunal dated 17th of January 2025, to the extent of the penalty, is modified. As a result, the penalty of removal from service imposed by the departmental authority on the judicial officer under Notification No. 65/RHC/AD dated 6th of May 2013 is restored, and CPLA No. 1606/2025 and CPLA No. 2172/2025 are dismissed with no order for costs.

JUDGE

JUDGE

JUDGE

Islamabad
13.05.2026
'APPROVED FOR REPORTING'
Irfan Aslam/*